

Ex. A².) Defendant has met its burden to show the proper venue for the action is Santa Clara County. Defendant is entitled to have the action tried in Santa Clara County.

Plaintiffs have not opposed the motion.

Accordingly, the court intends to grant the motion to transfer venue to Santa Clara County.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on -6/29/26
(Judge's initials) (Date)

² Defendant's Request for Judicial Notice of its Statement of Information filed with the California Secretary of State is granted.

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Tentative Ruling

Re: ***EBF Holdings, LLC v. Sulakhan Singh***
Superior Court Case No. 24CECG05085

Hearing Date: June 30, 2026 (Dept. 501)

Motion: By EBF Holdings, LLC dba Everest Business Funding for
Summary Judgment or, in the Alternative, Summary
Adjudication

Tentative Ruling:

To deny the plaintiff's motion for summary judgment, and the alternative motion for summary adjudication, without prejudice. (Code Civ. Proc., § 437c.)

Explanation:

On November 20, 2024, Plaintiff, EBF Holdings, LLC dba Everest Holdings, LLC, (Plaintiff or EBF) filed the operative complaint against Defendant North East Business Management, Inc., a California Corporation (Defendant Company) and its guarantor, defendant Sulakhan Singh, an individual (Defendant Guarantor), containing six causes of action against both named defendants except as noted: (1) breach of Revenue Based Financing Agreement (Purchase Agreement - against Defendant Company only); (2) fraud; (3) negligent misrepresentation; (4) violation of unfair competition law; (5) claim and delivery; and (6) breach of guaranty (against Defendant Guarantor only).

Defendant Guarantor answered the complaint, in propria persona, on behalf of both Defendant Guarantor and Defendant Company. The court granted Plaintiff's motion to strike Defendant Company's answer because a self-represented litigant cannot represent a corporation. Plaintiff then requested entry of Defendant Company's default, which was entered on May 27, 2025. Plaintiff now moves for summary judgment or summary adjudication.

Plaintiff Fails to Satisfy the Initial Burden of Persuasion and Production

Code of Civil Procedure section 437c provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) The burden then shifts to the defendant to show that a triable issue of one or more material facts "exists as to that cause of action or a defense thereto." (*Ibid.*)

A plaintiff moving for summary judgment is not required to disprove each defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [California law "no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of [plaintiff's] own cause of action"] (*Aguilar*).) Thus, a defendant cannot rely upon the allegations or denials of its own pleadings to show that a triable issue of material fact exists, but instead must set forth specific facts. (Code Civ. Proc., § 437c, subd. (p)(1).) The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.)

Summary Judgment

A motion for summary judgment is generally directed toward an entire action or pleading. (Code of Civ. Proc., § 437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) If a moving party fails to meet its initial burden, the trial court should stop its analysis and deny the motion for summary judgment. (See *Hedayati v. Interinsurance Exchange of the Automobile Club* (2021) 67 Cal.App.5th 833, 846 [if defendant fails to address issue raised in complaint, it fails to meet its initial burden and therefore fails to shift burden to opposing plaintiff].)

Here, the complaint includes a fifth cause of action for claim and delivery. Plaintiff fails to address the fifth cause of action in its moving papers. Of course, Plaintiff may dismiss the claim and delivery cause of action, but the court is unable to locate confirmation that Plaintiff has done so before filing its motion for summary judgment. Therefore, the court denies the motion for summary judgment.

Summary Adjudication

Plaintiff moves, in the alternative, for summary adjudication of the second through fourth and the sixth causes of action. In its separate statement, Plaintiff relies on the same set of 18 facts for each cause of action it challenges. Several of Plaintiff's facts lack evidentiary support.

For example, in its separate statement, Plaintiff states Defendant Company's agent and guarantor, Defendant Littleton executed the Purchase Agreement. (Fact No. 1.) Plaintiff's supporting evidence fails to mention a "Defendant Littleton." In Fact No. 3, Plaintiff states the Purchase Agreement was for the sale of \$60,000 of Defendant Company's future accounts receivable for the purchase price of \$40,000. Plaintiff's supporting evidence lists the future accounts receivable amount as \$57,200. (Goldberg decl., ex. 3, request for admission (RFA) 8 [MSJ 27].) Fact No. 7 includes a statement that Defendant Guarantor never intended to pay the \$60,000. Fact No. 7 is not supported by the cited RFA 19, which provides, Defendant Guarantor "never intended for EBF to collect the \$57,200.00 in receivables."

Fact No. 5 states, "Defendant Guarantor failed to make Defendant Company's accounts receivable available to Plaintiff under the Purchase Agreement on

Conclusion

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 06/29/26
(Judge's initials) (Date)